

HOUSE No. 571

The Commonwealth of Massachusetts

PRESENTED BY:

Carole A. Fiola

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing for alternatives to fines for failure to send.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carole A. Fiola</i>	<i>6th Bristol</i>	<i>1/14/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>1/23/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/23/2025</i>

HOUSE No. 571

By Representative Fiola of Fall River, a petition (accompanied by bill, House, No. 571) of Carole A. Fiola, Paul McMurtry and Lindsay N. Sabadosa relative to providing for alternative penalties for failure to send children to school. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 476 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing for alternatives to fines for failure to send.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 2 of chapter 76 of the General Laws is hereby amended by adding the following
2 paragraph:-

3 Notwithstanding any general or special law, rule or regulation to the contrary, the court
4 may, as an alternative to the fine provided herein, order a person in control of a child and the
5 child described in section 1, who fails to attend school under this section, to attend a counseling
6 program or other appropriate program or services, as determined by the court. If the court finds
7 that the child, and a person in control of such child, have successfully completed the court
8 ordered programs or services the court shall dismiss the charge under this section against the
9 defendant. Charges under this section shall be assigned to an expedited docket for disposition.